

Response to Office Action

The table below presents the data as entered.

Input Field	Entered
SERIAL NUMBER	87161625
LAW OFFICE ASSIGNED	LAW OFFICE 121
MARK SECTION (current)	
MARK FILE NAME	https://tmng-al.uspto.gov/resting2/api/img/87161625/large
LITERAL ELEMENT	PEEPL
STANDARD CHARACTERS	NO
USPTO-GENERATED IMAGE	NO
COLOR(S) CLAIMED (If applicable)	The color(s) blue, black, white is/are claimed as a feature of the mark.
DESCRIPTION OF THE MARK (and Color Location, if applicable)	The mark consists of the word peepl, all lower case, in bauhaus 93 or similar font, with the two "e's" facing each other suggesting eyes and a face.
MARK SECTION (proposed)	
MARK FILE NAME	\\TICRS\EXPORT17\IMAGEOUT 17\871\616\87161625\xml3\ ROA0002.JPG
LITERAL ELEMENT	PEEPL
STANDARD CHARACTERS	NO
USPTO-GENERATED IMAGE	NO
COLOR MARK	YES
COLOR(S) CLAIMED (If applicable)	The color(s) white and blue is/are claimed as a feature of the mark.
DESCRIPTION OF THE MARK (and Color Location, if applicable)	The mark consists of The word peepl, all lower case, in bauhaus 93 or similar font, with the two "e's" facing each other, suggesting eyes and a face in white on a blue background.
PIXEL COUNT ACCEPTABLE	YES
PIXEL COUNT	767 x 263
ARGUMENT(S)	
What is Peepl ?Peepl? is a mobile application for iOS and Android. It is a social networking/social utility mobile application, not a magazine publisher or computer software provider. ?Peepl? (accurate representation of the name mark below) is not in competition with People magazine or PPL. ?Peepl? is not a magazine or an enterprise software company. ?Peepl? does not compete with either of the registered or other companies mentioned in the refusal of the trademark application. Although phonetically the same to People, PPL, et al, ?Peepl? has a stylized visual representation making it unique and distinct from the other marks. Distinction between the word ?peepl? and the intended name and mark I concede the word ?peepl? in its typed configuration and form may cause confusion amongst consumers in regards to similarities with ?people? and ?ppl? as stated in your response. The word ?peepl?, however as is used in this correspondence, and as used in all typed correspondence, as well as referenced in the trademark application and the response to the application is not the name or mark that applies to the requested trademark. Due to deficiencies in word processing programs, the stylized configuration and font that represents the intended name and mark for ?peepl?, for which I am seeking the trademark, cannot be accurately presented in text without pasting an image, which is done above and below. Therefore the word ?peepl?, as typed, and as represented in your arguments and documents, is an inaccurate and different representation of the name and the trademark sought, yet has seemingly been used as such to make comparisons with registered trademarks and refuse trademark status for the intended name and mark. There are clear visual distinctions between the intended mark and the	

words "peep!?", "PEEPL?", and the registered marks "People?" and "PPL?". The intended mark is different and distinct in font, configuration, color scheme, and spelling. It is a stylized representation with the primary distinction being that the letter "e"s face each other in a representation and allusion to two eyes looking at the viewer; the secondary distinction being the spelling; the third being the font choice; and the fourth being the color scheme. No other registered mark has these elements and the intended mark is clearly visually distinct from the other registered marks referred to in the refusal. Does this look like this or this "PPL?" or this "peep!?" No. Are the fonts the same? No. Are the spellings the same? No. Are the letter configurations the same? No. Are the color schemes the same? No. Can a reasonable consumer/user distinguish the visual difference/distinction between them? Yes. These marks are distinctly different ? from spelling, to letter configuration, to font, to color scheme ? from the registered marks and are easily distinguished from one to another. Questions ? Why isn't the test whether the marks can be distinguished in a side-by-side comparison? ? How are you defining commercial impression? ? How can you determine what is likely to result when there is a distinct visual and product difference amongst the mentioned marks? ? Are mobile applications and magazines virtually identical? ? Are all software programs virtually identical? If not, then how are you making the determination that the goods and services are identical? ? How do you define what is confusing? What number of people have to be confused? ? ??Here, the applied-for mark is "PEEPL?", while registrants' marks are "PEOPLE?", "PEOPLE?", and "PPL?". Pertinent in this case, then, there is no correct pronunciation of a mark because it is impossible to predict how the public will pronounce a particular mark...? You can determine, predict the likelihood of confusion by consumers as to the source of goods and services, what their commercial impression will be but not how the public will pronounce the mark? ? So you can predict one but not the other? ? How is it you are able to predict one and not the other? ? And if you can't then how can you refuse the trademark based on speculation that the public being will confused as to the origin and similarity of goods and services, similarity of appearance, sound, connotation, and commercial impression? What objective, defining benchmark are you using to determine this? Case study works for the specific cases mentioned, as you stated, and not this case, so how can you use past studies, about different companies and situations to determine consumer behavior in regards to this specific name, mark, and goods/services offered? ? Finally, Is there a registered trademark that uses the font, letter configuration, spelling, and color scheme of the intended mark above for the purposes of an iOS or Android other social network/social utility mobile application? If not then I request that a trademark be granted for the intended mark.

GOODS AND/OR SERVICES SECTION (current)

INTERNATIONAL CLASS	009
DESCRIPTION	
Downloadable mobile applications for social networking and sharing information about social situations	
FILING BASIS	Section 1(a)
FIRST USE ANYWHERE DATE	At least as early as 09/03/2015
FIRST USE IN COMMERCE DATE	At least as early as 09/03/2015

GOODS AND/OR SERVICES SECTION (proposed)

INTERNATIONAL CLASS	009
TRACKED TEXT DESCRIPTION	
Downloadable mobile applications for social networking and sharing information about social situations ; <u>The mark is intended as the brand name and representation of the iOS and Android social networking/social utility mobile application 'peep!'. The mobile application has a specific intent and utility in that it is intended to provide users with information about a location's - any location - crowd size and dynamics.</u>	

FINAL DESCRIPTION

The mark is intended as the brand name and representation of the iOS and Android social networking/social utility mobile application 'peep!'. The mobile application has a specific intent and utility in that it is intended to provide users with information about a location's - any location - crowd size and dynamics.

FILING BASIS	Section 1(a)
FIRST USE ANYWHERE DATE	At least as early as 09/03/2015
FIRST USE IN COMMERCE DATE	At least as early as 09/03/2015

STATEMENT TYPE	"The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce at least as early as the filing date of the application" [for an application based on Section 1(a), Use in Commerce] OR "The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce prior either to the filing of the Amendment to Allege Use or expiration of the filing deadline for filing a Statement of Use" [for an application based on Section 1(b) Intent-to-Use]. OR "The attached specimen is a true copy of the specimen that was originally submitted with the application,
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	amendment to allege use, or statement of use" [for an illegible specimen].
SPECIMEN FILE NAME(S)	\\TICRS\EXPORT17\IMAGEOUT 17\871\616\87161625\xml3\ ROA0003.JPG
	\\TICRS\EXPORT17\IMAGEOUT 17\871\616\87161625\xml3\ ROA0004.JPG
SPECIMEN DESCRIPTION	The specimen is a stylized version of the word peepl. It's uniqueness and distinction is derived from the combination of the unique font, spelling, letter configuration, and color scheme of the word 'peepl' most notably that the two "e's" in peepl face each other connoting a two eyes. Also, the colors white and blue are claimed as feature of the mark.
FILING BASIS	Section 1(b)
ADDITIONAL STATEMENTS SECTION	
DISCLAIMER	No claim is made to the exclusive right to use peepl apart from the mark as shown.
SIGNATURE SECTION	
DECLARATION SIGNATURE	/James Houston/
SIGNATORY'S NAME	James Houston
SIGNATORY'S POSITION	Owner
SIGNATORY'S PHONE NUMBER	4048085943
DATE SIGNED	06/20/2017
RESPONSE SIGNATURE	/James Houston/
SIGNATORY'S NAME	James Houston
SIGNATORY'S POSITION	Owner
SIGNATORY'S PHONE NUMBER	4048085943
DATE SIGNED	06/20/2017
AUTHORIZED SIGNATORY	YES
FILING INFORMATION SECTION	
SUBMIT DATE	Tue Jun 20 15:55:47 EDT 2017
TEAS STAMP	USPTO/ROA-XX.XXX.XX.XXX-2 0170620155547670255-87161 625-5903c61f0287eb1a09656 9470acab9a6489fec8a742d34 14820eec32aa93b855c8f-N/A -N/A-20170620151721711979

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PTO Form 1957 (Rev 10/2011)

OMB No. 0651-0050 (Exp 07/31/2017)

Response to Office Action

To the Commissioner for Trademarks:

Application serial no. **87161625** PEEPL (Stylized and/or with Design, see <https://tmng-al.uspto.gov/resting2/api/img/87161625/large>) has been amended as follows:

MARK

Applicant proposes to amend the mark as follows:

Current: PEEPL (Stylized and/or with Design, see <https://tmng-al.uspto.gov/resting2/api/img/87161625/large>)

Proposed: PEEPL (Stylized and/or with Design, see [mark](#))

The color(s) white and blue is/are claimed as a feature of the mark.

The mark consists of The word peepl, all lower case, in bauhaus 93 or similar font, with the two "e's" facing each other, suggesting eyes and a face in white on a blue background.

ARGUMENT(S)

In response to the substantive refusal(s), please note the following:

What is Peepl? Peepl? is a mobile application for iOS and Android. It is a social networking/social utility mobile application, not a magazine publisher or computer software provider. ?Peepl? (accurate representation of the name mark below) is not in competition with People magazine or PPL. ?Peepl? is not a magazine or an enterprise software company. ?Peepl? does not compete with either of the registered or other companies mentioned in the refusal of the trademark application. Although phonetically the same to People, PPL, et al, ?Peepl? has a stylized visual representation making it unique and distinct from the other marks. Distinction between the word ?peepl? and the intended name and mark I concede the word ?peepl? in its typed configuration and form may cause confusion amongst consumers in regards to similarities with ?people? and ?ppl? as stated in your response. The word ?peepl?, however as is used in this correspondence, and as used in all typed correspondence, as well as referenced in the trademark application and the response to the application is not the name or mark that applies to the requested trademark. Due to deficiencies in word processing programs, the stylized configuration and font that represents the intended name and mark for ?peepl?, for which I am seeking the trademark, cannot be accurately presented in text without pasting an image, which is done above and below. Therefore the word ?peepl?, as typed, and as represented in your arguments and documents, is an inaccurate and different representation of the name and the trademark sought, yet has seemingly been used as such to make comparisons with registered trademarks and refuse trademark status for the intended name and mark. There are clear visual distinctions between the intended mark and the words ?peepl?, ?PEEPL?, and the registered marks ?People? and ?PPL?. The intended mark is different and distinct in font, configuration, color scheme, and spelling. It is a stylized representation with the primary distinction being that the letter ?e's? face each other in a representation and allusion to two eyes looking at the viewer; the secondary distinction being the spelling; the third being the font choice; and the fourth being the color scheme. No other registered mark has these elements and the intended mark is clearly visually distinct from the other registered marks referred to in the refusal. Does this look like this or this ?PPL? or this ?peepl?? No. Are the fonts the same? No. Are the spellings the same? No. Are the letter configurations the same? No. Are the color schemes the same? No. Can a reasonable consumer/user distinguish the visual difference/distinction between them? Yes. These marks are distinctly different ? from spelling, to letter configuration, to font, to color scheme ? from the registered marks and are easily distinguished from one to another. Questions ? Why isn't the test whether the marks can be distinguished in a side-by-side comparison? ? How are you defining commercial impression? ? How can you determine what is likely to result when there is a distinct visual and product difference amongst the mentioned marks? ? Are mobile applications and magazines virtually identical? ? Are all software programs virtually identical? If not, then how are you making the determination that the goods and services are identical? ? How do you define what is confusing? What number of people have to be confused? ? ??Here, the applied-for mark is ?PEEPL?, while registrants' marks are ?PEOPLE?, ?PEOPLE?, and ?PPL?. Pertinent in this case, then, there is no correct pronunciation of a mark because it is impossible to predict how the public will pronounce a particular mark...? You can determine, predict the likelihood of confusion by consumers as to the source of goods and services, what their commercial impression will be but not how the public will pronounce the mark? ? So you can predict one but not the other? ? How is it you are able to predict one and not the other? ? And if you can't then how can you refuse the trademark based on speculation that the public being will confused as to the origin and similarity of goods and services, similarity of appearance, sound, connotation, and commercial impression? What objective, defining benchmark are you using to determine this? Case study works for the specific cases mentioned, as you stated, and not this case, so how can you use past studies, about different companies and situations to determine consumer behavior in regards to this specific name, mark, and goods/services offered? ? Finally, Is there a registered trademark that uses the font, letter configuration, spelling, and color scheme of the intended mark above for the purposes of an iOS or Android other social network/social utility mobile application? If not then I request that a trademark be granted for the intended mark.

CLASSIFICATION AND LISTING OF GOODS/SERVICES

Applicant proposes to amend the following class of goods/services in the application:

Current: Class 009 for Downloadable mobile applications for social networking and sharing information about social situations

Original Filing Basis:

Filing Basis: Section 1(a), Use in Commerce: The applicant is using the mark in commerce, or the applicant's related company or licensee is using the mark in commerce, on or in connection with the identified goods and/or services. 15 U.S.C. Section 1051(a), as amended. The mark was first used at least as early as 09/03/2015 and first used in commerce at least as early as 09/03/2015 , and is now in use in such commerce.

Proposed:

Tracked Text Description: ~~Downloadable mobile applications for social networking and sharing information about social situations;~~ [The mark is intended as the brand name and representation of the iOS and Android social networking/social utility mobile application 'peepl'. The mobile application has a specific intent and utility in that it is intended to provide users with information about a location's - any location - crowd size and dynamics.](#)

Class 009 for The mark is intended as the brand name and representation of the iOS and Android social networking/social utility mobile

application 'peepl'. The mobile application has a specific intent and utility in that it is intended to provide users with information about a location's - any location - crowd size and dynamics.

Filing Basis: Section 1(b), Intent to Use: *For a trademark or service mark application:* As of the application filing date, the applicant had a bona fide intention, and was entitled, to use the mark in commerce on or in connection with the identified goods/services in the application. ***For a collective trademark, collective service mark, or collective membership mark application:*** As of the application filing date, the applicant had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce by members on or in connection with the identified goods/services/collective membership organization. ***For a certification mark application:*** As of the application filing date, the applicant had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce by authorized users in connection with the identified goods/services, and the applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant.

Filing Basis: Section 1(a), Use in Commerce: The applicant is using the mark in commerce, or the applicant's related company or licensee is using the mark in commerce, on or in connection with the identified goods and/or services. 15 U.S.C. Section 1051(a), as amended. The mark was first used at least as early as 09/03/2015 and first used in commerce at least as early as 09/03/2015, and is now in use in such commerce. Applicant hereby submits one(or more) specimen(s) for Class 009. The specimen(s) submitted consists of The specimen is a stylized version of the word peepl. It's uniqueness and distinction is derived from the combination of the unique font, spelling, letter configuration, and color scheme of the word 'peepl' most notably that the two "e's" in peepl face each other connoting a two eyes. Also, the colors white and blue are claimed as feature of the mark. .

"The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce at least as early as the filing date of the application" [for an application based on Section 1(a), Use in Commerce] OR "The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce prior either to the filing of the Amendment to Allege Use or expiration of the filing deadline for filing a Statement of Use" [for an application based on Section 1(b) Intent-to-Use]. OR "The attached specimen is a true copy of the specimen that was originally submitted with the application, amendment to allege use, or statement of use" [for an illegible specimen]. [Specimen File1](#)
[Specimen File2](#)

ADDITIONAL STATEMENTS

Disclaimer

No claim is made to the exclusive right to use peepl apart from the mark as shown.

SIGNATURE(S)

Declaration Signature

DECLARATION: The signatory being warned that willful false statements and the like are punishable by fine or imprisonment, or both, under 18 U.S.C. § 1001, and that such willful false statements and the like may jeopardize the validity of the application or submission or any registration resulting therefrom, declares that, if the applicant submitted the application or allegation of use (AOU) unsigned, all statements in the application or AOU and this submission based on the signatory's own knowledge are true, and all statements in the application or AOU and this submission made on information and belief are believed to be true.

STATEMENTS FOR UNSIGNED SECTION 1(a) APPLICATION/AOU: If the applicant filed an unsigned application under 15 U.S.C. §1051(a) or AOU under 15 U.S.C. §1051(c), the signatory additionally believes that: the applicant is the owner of the mark sought to be registered; the mark is in use in commerce and was in use in commerce as of the filing date of the application or AOU on or in connection with the goods/services/collective membership organization in the application or AOU; the original specimen(s), if applicable, shows the mark in use in commerce as of the filing date of the application or AOU on or in connection with the goods/services/collective membership organization in the application or AOU; ***for a collective trademark, collective service mark, collective membership mark application, or certification mark application,*** the applicant is exercising legitimate control over the use of the mark in commerce and was exercising legitimate control over the use of the mark in commerce as of the filing date of the application or AOU; ***for a certification mark application,*** the applicant is not engaged in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant. **To the best of the signatory's knowledge and belief, no other persons, except, if applicable, authorized users, members, and/or concurrent users, have the right to use the mark in commerce, either in the identical form or in such near resemblance as to be likely, when used on or in connection with the goods/services/collective membership organization of such other persons, to cause confusion or mistake, or to deceive.**

STATEMENTS FOR UNSIGNED SECTION 1(b)/SECTION 44 APPLICATION AND FOR SECTION 66(a)

COLLECTIVE/CERTIFICATION MARK APPLICATION: If the applicant filed an unsigned application under 15 U.S.C. §§ 1051(b), 1126(d), and/or 1126(e), or filed a collective/certification mark application under 15 U.S.C. §1141f(a), the signatory additionally believes that: ***for a trademark or service mark application,*** the applicant is entitled to use the mark in commerce on or in connection with the goods/services specified in the application; the applicant has a bona fide intention to use the mark in commerce and had a bona fide intention to use the mark in

commerce as of the application filing date; **for a collective trademark, collective service mark, collective membership mark, or certification mark application**, the applicant has a bona fide intention, and is entitled, to exercise legitimate control over the use of the mark in commerce and had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce as of the application filing date; the signatory is properly authorized to execute the declaration on behalf of the applicant; **for a certification mark application**, the applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant. **To the best of the signatory's knowledge and belief, no other persons, except, if applicable, authorized users, members, and/or concurrent users, have the right to use the mark in commerce, either in the identical form or in such near resemblance as to be likely, when used on or in connection with the goods/services/collective membership organization of such other persons, to cause confusion or mistake, or to deceive.**

Signature: /James Houston/ Date: 06/20/2017

Signatory's Name: James Houston

Signatory's Position: Owner

Signatory's Phone Number: 4048085943

Response Signature

Signature: /James Houston/ Date: 06/20/2017

Signatory's Name: James Houston

Signatory's Position: Owner

Signatory's Phone Number: 4048085943

The signatory has confirmed that he/she is not represented by either an authorized attorney or Canadian attorney/agent, and that he/she is either: (1) the owner/holder ; or (2) a person(s) with legal authority to bind the owner/holder; and if an authorized U.S. attorney or Canadian attorney/agent previously represented him/her in this matter, either he/she has filed a signed revocation of power of attorney with the USPTO or the USPTO has granted the request of his/her prior representative to withdraw.

Serial Number: 87161625

Internet Transmission Date: Tue Jun 20 15:55:47 EDT 2017

TEAS Stamp: USPTO/ROA-XX.XXX.XX.XXX-2017062015554767

0255-87161625-5903c61f0287eb1a096569470a

cab9a6489fec8a742d3414820eec32aa93b855c8

f-N/A-N/A-20170620151721711979





Get Peeps

peepi

Peep!

What's happening

Crowd Size



LA Fitness

LordByron

6/12/2017 5:12 PM

2 miles away

Crowd Size



Wait: None

Pure Taqueria Brookhaven

LordByron

6/7/2017 8:46 PM

5246 feet away

Crowd Size



Food Terminal

jc

6/3/2017 8:24 PM

1 mile away

Crowd Size

